

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Yost	Team: Team # 8	CCRB Case #: 200609865	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 07/11/2006 3:30 PM	Location of Incident: 115th Precinct stationhouse	18 Mo. SOL 1/11/2008	Precinct: 115
Date/Time CV Reported Tue, 07/25/2006 9:25 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 07/25/2006 9:25 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Vincent Calderone	00328	936038	115 PCT
2. LT Michael Willis	00000	894438	115 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Vincent Calderone	Abuse: PO Vincent Calderone did not process § 87(2)(b)'s complaint regarding officers.	A . Substantiated
B . LT Michael Willis	Abuse: Lt. Michael Willis did not process § 87(2)(b)'s complaint regarding officers.	B . Unsubstantiated

Synopsis

On July 11, 2006, at approximately 3:30 PM, § 87(2)(b) approached PO Calderone inside the 115th Precinct stationhouse and told him that an officer, determined to be PO Viruet, had been helping her locate PO Marshall so that she could amend an accident report. PO Calderone told her that he would try and find him and told her to have a seat. At 3:50 PM, § 87(2)(b) again approached PO Calderone and he looked in the sign-out sheet and found that PO Marshall had signed out at 3:40 PM. § 87(2)(b) then asked PO Calderone for a civilian complaint form so that she could make a complaint against PO Viruet and him. PO Calderone was elusive, “tried to change the subject,” and told § 87(2)(b) that filing a complaint was “not simple.” After § 87(2)(b) insisted on filing a complaint, PO Calderone said, “Do you really want it?” § 87(2)(b) told him that she did and PO Calderone went and spoke to Lt. Michael Willis. The two spoke briefly and Lt. Willis motioned to the wall with the number to the CCRB listed on it. PO Calderone returned and provided § 87(2)(b) with the number to the CCRB instead of giving her a civilian complaint form (Allegation A). At the time of her interview § 87(2)(b) was offered the option of mediation but declined. § 87(2)(g) it is recommended that allegation A be **substantiated**.

Summary of Complaint

§ 87(2)(b) a § 87(2)(b) Asian female, currently residing at § 87(2)(b) in Queens, called the CCRB on July 25, 2006 and left a message on the call processing system. § 87(2)(b) stated that, on July 11, 2006, after requesting to speak with PO Marshall, whom had filled out her accident report, she was made to wait at the 115th Precinct stationhouse. While she was waiting PO Marshall left and § 87(2)(b) requested a complaint form from PO Calderone in order to file a complaint. § 87(2)(b) stated that PO Calderone avoided the issue and tried to change the subject. After she persisted, PO Calderone spoke with Lt. Willis at the desk and motioned to the CCRB number on the wall. PO Calderone then told § 87(2)(b) to take down the number to the CCRB if she wanted to file a complaint. § 87(2)(b) was contacted by the undersigned investigator on August 2, 2006 and provided a telephone statement, § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

On July 11, 2006, at approximately 3:00 PM, § 87(2)(b) went to the 115th Precinct in order to speak with PO Marshall. § 87(2)(b) believed PO Marshall had erroneously filled out her accident report and she had been previously instructed by the precinct to come at this date and time in order to speak with him. § 87(2)(b) asked PO Viruet, who was at the front desk, to speak with PO Marshall. PO Viruet told her that he would be available between 3:15 PM and 3:30 PM, that she should wait in the waiting area, and that he would notify her when PO Marshall was available. At 3:30 PM § 87(2)(b) went again to the front desk and saw that PO Calderone had replaced PO Viruet. § 87(2)(b) asked PO Calderone if PO Marshall was available at 3:30, 3:40 and 3:50. Each time he replied, “I don’t know.” The third time she asked him PO Calderone checked the sign-in sheet and found that PO Marshall had left at 3:40 PM. The entire time PO Calderone had been very helpful to a white female civilian. § 87(2)(b) then asked for an “official complaint form” to complain about both PO Calderone and PO Viruet’s unwillingness to help her. PO Calderone told her that filing a complaint was not that simple and that he would have to speak with his boss. PO Calderone then tried to change the subject. § 87(2)(b) then asked for PO Viruet’s name and PO Calderone discerned it from the sign-in sheet and told her. After obtaining PO Viruet’s name, § 87(2)(b) again asked for a complaint form and PO Calderone still acted hesitant. Finally, PO Calderone sarcastically asked, “Do you really want it?” § 87(2)(b) replied “Yes” and PO Calderone walked over to his supervisor, determined to be Lieutenant Michael Willis. After speaking with PO Calderone briefly, Lt. Willis motioned to the wall with his chin. PO Calderone then told § 87(2)(b) to call the number to the CCRB, which was posted on the wall. The wall was hard to see but § 87(2)(b) wrote the number down on a napkin and left the precinct.

Photo Viewing

On October 2, 2006, § 87(2)(b) participated in a photo viewing at the CCRB offices.

§ 87(2)(b) was shown photographs of Lt. Michael Willis, Sgt. Vincent Ligouri and four similar-looking fillers. Lt. Michael Willis was listed on the 115th Precinct tour 3 roll call for July 11, 2006 as the desk officer during the time of the incident. Sgt. Ligouri was also listed as assigned to the desk at the time of the incident on the tour 2 roll call for July 11, 2006. They were the only two desk officers listed on the roll call during the time of the incident.

When shown photograph # 1, § 87(2)(b) stated that she did not recognize the officer. When shown photograph # 2, § 87(2)(b) stated that she did not recognize the officer. When shown photograph # 3, § 87(2)(b) stated that she did not recognize the officer. When shown photograph # 4, § 87(2)(b) stated that she recognized the officer from the 115th Precinct, but that he was not the subject officer. When shown photograph # 5, § 87(2)(b) stated, "That's him" and explained that he had been the lieutenant whom PO Calderone had spoken to. The lieutenant she identified was Lt. Michael Willis of the 115th Precinct. When shown photograph # 6, § 87(2)(b) stated that she did not recognize the officer.

Results of Investigation

Officer Statements

PO Vincent Calderone

PO Vincent Calderone, of the 115th Precinct, a § 87(2)(b)-old white male, was interviewed at the CCRB offices on August 31, 2006. On July 11, 2006, PO Calderone worked from 3:00 PM to 11:35 PM. From 3:35 PM to 10:35 PM, PO Calderone was assigned to be the telephone-switchboard operator at the 115th Precinct stationhouse. He does not have any entries in his memo book regarding this incident.

At approximately 3:35 PM PO Calderone started working as the telephone-switchboard (T/S) operator. It was a change of tour and the stationhouse was therefore very crowded. Shortly after he started an Asian lady, determined to be § 87(2)(b) approached him and told him that the previous T/S operator had been helping her to locate PO Marshall, who had filled out an accident report for her. § 87(2)(b) was acting "normal." PO Calderone told her to have a seat and informed her that he would try and locate him. PO Calderone sent someone, he did not recall who, to look for PO Marshall in the changing area. PO Marshall was not there. § 87(2)(b) approached him again and PO Calderone looked in the roll call. He determined that PO Marshall had signed out at 3:35 PM. § 87(2)(b) became visibly annoyed at that point but did not ask for a complaint form.

PO Calderone first stated that when § 87(2)(b) demonstrated that she was annoyed he immediately referred her to the desk supervisor. PO Calderone could not recall who the desk supervisor was. Upon further questioning, however, PO Calderone stated that after § 87(2)(b) got upset she asked him, "Is that the phone number to make a complaint?" and motioned to a number on the wall. He responded, "Yes" and she wrote it down. PO Calderone then informed the desk supervisor. PO Calderone later stated, however, that he, in fact, referred her to the number on the wall even though she did not ask for it specifically, "I think I referred her the number on the wall." He then told her that if she was not happy he would get the desk supervisor. PO Calderone also stated that he told § 87(2)(b) "If you would like to make a complaint you can either do it with my supervisor or there is a number on the wall right there," but she did not ask him first about the number. PO Calderone recalls § 87(2)(b) writing down the number. She did not, however, request a complaint form and he never looked for one. PO Calderone also stated that at one point he told the desk supervisor about § 87(2)(b)'s complaint and that the desk supervisor came over and spoke to her. He does not recall if it was his desk supervisor who advised him to give § 87(2)(b) the number to the CCRB. According to PO Calderone, the desk supervisor was a male sergeant in a blue uniform.

Lieutenant Michael Willis

Lieutenant Michael Willis, a § 87(2)(b) -old male with an 18-year tenure, assigned to the 115th Precinct, was interviewed at the CCRB offices on October 18, 2006. On July 11, 2006, Lt. Willis was assigned to the front desk from 3:00 PM to 11:20 PM. He was dressed in uniform. Lt. Willis did not have any entries in his memo book regarding this incident.

On July 11, 2006, at approximately 3:30 PM, Lt. Willis was working at the front desk of the 115th Precinct stationhouse. Lt. Willis did not have any recollection of the incident. He did state, however, that the 115th Precinct stationhouse, at that time of day, is “usually very busy.” In addition, he most likely would have been at the desk at that time of day and that there were likely other supervisors around as well. There are “a couple” other lieutenants that do administrative work at that time. Furthermore, there is always a sufficient supply of complaint forms behind the desk. When a civilian asks to make a complaint in person at the stationhouse, it is procedure to tell them that they can file a complaint form there or take it home and send it back. In addition, they are given the number to the CCRB. When a civilian is “incessant” about making a complaint the T/S operator “should go to a supervisor.” The numbers to IAB and the CCRB are listed prevalently behind the desk.

Police Documents

Roll Call

The 115th Precinct roll call for tour 2 on July 11, 2006 indicates that Sgt. Ligouri was on duty until 3:57 PM. All other officers working the desk during the second tour were off duty by the time of the incident. PO Marshall was assigned to a sector patrol during this tour and PO Viruet was on restricted duty. The 115th Precinct roll call for tour 3 on July 11, 2006 indicates that Lieutenant Willis, who was on duty from 2:45 PM until 11:20 PM, was the only desk officer during that tour. PO Calderone is listed as the telephone-switchboard operator.

Command Log

The 115th Precinct command log for July 11, 2006 indicates that Lt. Willis was present for duty at 2:25 PM and assigned to the desk at 3:00 PM. Sgt. Ligouri returned to the precinct at 2:25 PM and started working at the desk 2:35 PM. There are no entries directly relating to the incident.

Civilian History

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)] This is § 87(2)(b) s first CCRB complaint.

Officer History

PO Vincent Calderone does not have any prior substantiated CCRB allegations that have resulted in disciplinary action by the NYPD in his 1-year tenure.

Conclusions and Recommendations

Officer Identification

§ 87(2)(b) identified PO Vincent Calderone by name in her statements. In addition, he was listed on the 115th Precinct roll call as being assigned the telephone-switchboard operator on July 11, 2006 at the alleged time of the incident. Finally, PO Calderone verified his own participation in the incident.

§ 87(2)(g)

Undisputed Facts

On July 11, 2006, § 87(2)(b) went to the 115th Precinct. At approximately 3:30 PM, she approached PO Vincent Calderone, told him an officer had previously been helping her locate PO Marshall in order to amend her accident report. § 87(2)(b) asked PO Calderone if he could locate PO Marshall. § 87(2)(b) approached PO Calderone again at approximately 3:50 to see if PO Marshall had been located. PO Calderone looked at the roll call and ascertained that PO Marshall had signed out at 3:35 PM. At this point § 87(2)(b) made it known that she would like to file a complaint. § 87(2)(b) obtained the number to the CCRB from the poster on the wall.

Disputed Facts

§ 87(2)(g)

[REDACTED]

Assessment of Evidence

§ 87(2)(g)

[REDACTED]

Allegations Not Pleaded

§ 87(2)(g)

[REDACTED]

§ 87(2)(b) however, admitted that she could not hear what PO Calderone told Lt. Willis about her wish to file a complaint or what Lt. Willis instructed PO Calderone to do. Furthermore, PO Calderone could not articulate what was said between himself and Lt. Willis. At one point PO Calderone stated that he did refer the complaint to the desk officer and at another point stated that he had no “direct contact” with him. Finally, Lt. Willis denied having any involvement in the incident. Although

§ 87(2)(b) stated that she saw Lt. Willis motion to the CCRB's number, PO Calderone did not recall being directly instructed by Lt. Willis to provide § 87(2)(b) with the number to the CCRB. § 87(2)(g)

Allegation A: PO Vincent Calderone did not process § 87(2)(b)'s complaint regarding officers

§ 87(2)(b) alleged that she asked PO Calderone for an official complaint form in order to file a complaint about PO Viruet and PO Calderone because they had been unhelpful to her while being overly helpful to a white woman. PO Calderone was elusive and hesitant. After § 87(2)(b) insisted on filing a complaint, PO Calderone went and spoke to Lt. Willis. Lt. Willis motioned to the number of the CCRB posted on the wall and when PO Calderone returned he provided that number to § 87(2)(b) § 87(2)(g)

Patrol Guide procedure 207-31 states that upon receiving a complaint of misconduct, all members of service must report the complaint. The procedure for doing so if the person is making the complaint in person is to first interview the complainant. The officer is then to give the complainant the first copy of the complaint report and assist them, if necessary, in completing it. The officer taking the complaint is then to refer the complaint to the CCRB or OCD themselves and obtain the case number. In order to prevent an "interruption or delay vital services" the T/S operator is permitted to refer the allegation of misconduct to the desk officer and the desk officer is to record the pertinent details. In *NYPD v. Furman* (OATH case no. 79772/04) it was found that Patrol Guide Section 207-31 "contains no provision which grants MOS the authority to spurn civilian complaints of police misconduct..." In *NYPD v. Castillo* (OATH case no. 80437/04) it was found that members of service do not have the discretion to reject civilian complaints.

§ 87(2)(g)

It is therefore recommended that allegation A be **substantiated**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: